



EVL1 — Introduction to Evidence and Proof

Module 1 — Introduction to Evidence Law

Lesson 1: Nature, Meaning & Philosophy of Evidence Law

Student Lesson Notes

WHAT IS EVIDENCE?

Meaning in Ordinary Language

In everyday life, when we say we have evidence of something, we mean we have information, facts, or material that supports or proves a claim. If a student says she was present in class, her attendance register entry is evidence. If a trader says he paid for goods, his receipt is evidence.

Evidence in ordinary language means anything that helps establish whether something is true or false.

Legal Definition of Evidence

In law, evidence has a more precise and controlled meaning. Not everything that might help establish the truth is automatically accepted by a court. The law sets rules about what can be presented, how it must be presented, and what the court can do with it.

Evidence (Section 2, Evidence Act Cap. 8): Includes all statements which the court permits or requires to be made before it by witnesses in relation to matters of fact under inquiry, AND all documents including electronic records produced for the inspection of the court.

This means evidence covers two broad categories:

- Oral evidence — what witnesses say in court when testifying under oath or affirmation
- Documentary evidence — written or recorded material produced before the court, including electronic records such as emails, text messages, and digital files

Why Courts Need Evidence

Courts cannot guess. Courts cannot assume. Courts cannot act on rumour, suspicion, or personal knowledge of the judge. Every finding a court makes must be based on material that has been properly placed before it. Evidence serves three core purposes:

- To establish facts — most disputes involve a disagreement about what happened. Evidence is the tool the court uses to find out what actually occurred.
- To protect against wrongful decisions — without rules requiring proper proof, courts could convict innocent people or hold parties liable for things they did not do.
- To ensure fairness — both sides must have the opportunity to present their case and challenge the other side's case.

Quick Scenario: Can a judge decide a case without evidence? No. A judge who convicts without any evidence before them has acted unconstitutionally. The accused is presumed innocent under Article 28(3)(a) of the Constitution of Uganda 1995 until the prosecution proves guilt through properly admitted evidence.

WHAT IS EVIDENCE LAW?

Evidence Law is the branch of law that governs the means and methods by which facts are proved or disproved in legal proceedings before a court or tribunal.

It answers four fundamental questions in every case:

- What can be presented? — not everything that might be useful is allowed in court.
- How must it be presented? — specific rules govern how witnesses testify and how documents are produced.
- Who can present it? — determines who is competent to testify and who can be compelled.

- What weight does it carry? — guides how much significance the court can attach to admitted evidence.

Primary Source — Evidence Act Cap. 8

In Uganda, the primary source of evidence law is the Evidence Act Cap. 8 of the Laws of Uganda (2024 Revised Edition). This statute was originally derived from the Indian Evidence Act of 1872 and has been developed through decades of Ugandan court decisions.

Evidence Act Cap. 8 *Laws of Uganda 2024 Revised Edition* — The foundational statute governing all evidence in Ugandan courts — civil and criminal.

The Act covers relevancy, admissibility, oral evidence, documentary evidence, burden of proof, presumptions, witnesses, and corroboration. Every rule studied in this course traces back to this statute.

Relationship with Procedural Statutes

Evidence law works alongside procedural statutes that govern how court proceedings are conducted:

Civil Procedure Act Cap. 282: Governs how civil cases are conducted in Ugandan courts

Trial on Indictments Act Cap. 25: Governs serious criminal trials before the High Court

Magistrates Courts Act Cap. 19: Governs proceedings before magistrates courts

Think of it this way: procedural law is the road. Evidence law governs the vehicles allowed on that road and the rules of the road itself.

NATURE OF EVIDENCE LAW

Evidence Law as Procedural (Adjectival) Law

Law is generally divided into two broad categories: substantive law and procedural law (also called adjectival law).

Substantive Law: Creates rights and obligations. Tells us what is legally right or wrong. Examples: Penal Code Act Cap. 128, Contracts Act Cap. 284, Land Act Cap. 236.

Adjectival (Procedural) Law: Governs how rights and obligations are enforced in court. Does not create rights — it is the machinery through which substantive law is applied.

Evidence Law belongs to the adjectival category. It does not make any conduct legal or illegal. It only becomes relevant once a dispute reaches a court and the question arises of how facts will be proved.

Why This Classification Matters

Consider a murder charge under Section 188 of the Penal Code Act Cap. 128. The substantive law defines murder and prescribes the penalty. The Evidence Act Cap. 8 then governs every procedural question — what witnesses can testify, whether a dying declaration can be admitted, whether a confession is admissible, and what standard of proof applies.

None of the evidence questions change what murder means or what the penalty is. They only determine how the facts are established.

Application in Civil and Criminal Matters

The Evidence Act Cap. 8 applies across the board — in criminal prosecutions and in civil claims. However some rules apply differently:

- In criminal proceedings — rules are generally stricter. The accused's rights must be carefully protected. The burden of proof is higher.
- In civil proceedings — the rules are somewhat more flexible. The standard of proof is lower.

PHILOSOPHY AND OBJECTIVES OF EVIDENCE LAW

Evidence law is not a random collection of technical rules. Every rule serves a purpose connected to one or more of five core objectives. Understanding these objectives helps students make sense of rules that might otherwise seem strange or overly technical.

1. The Search for Truth

The ultimate goal of any court proceeding is to establish what actually happened. Evidence law channels the fact-finding process so that courts work with reliable, tested material rather than rumour, speculation, or prejudice. However, evidence law does not guarantee absolute truth — it gets courts as close to the truth as reasonably possible within a fair and structured process.

2. Fair Trial Principles

A fair trial is a constitutional right in Uganda under Article 28 of the Constitution of Uganda 1995. Evidence law gives practical effect to this right — both parties get the opportunity to present evidence and challenge the other side's evidence, including through cross-examination.

Article 28, Constitution of Uganda 1995 — Guarantees the right to a fair hearing — the foundational source of the fairness objective in evidence law.

3. Reliability of Evidence

Not all evidence is equally trustworthy. Evidence law builds in mechanisms to test and improve reliability. This is why hearsay evidence is generally treated with caution under Section 30 of the Evidence Act Cap. 8, and why certain evidence requires corroboration before a court can safely act on it.

4. Protection Against Wrongful Conviction

The consequences of a wrongful conviction are severe. Evidence law responds through the presumption of innocence, the beyond reasonable doubt standard, corroboration requirements, and the exclusion of improperly obtained evidence such as confessions extracted through torture.

Akbar Hussein Godi v Uganda *Criminal Appeal No. 3 of 2013, Supreme Court of Uganda* — Emphasised the importance of proper evidential foundations before securing a conviction — suspicion alone is not proof.

5. Balancing Justice and Efficiency

Courts operate with limited time. Rules of relevancy keep proceedings focused only on matters that actually matter to the case, preventing courts from being overwhelmed with irrelevant material while still allowing enough evidence for a fair determination.

How These Objectives Interact

These five objectives do not always point in the same direction. The rule against hearsay protects reliability but might exclude evidence that helps find the truth. Strict standards of proof protect against wrongful conviction but make it harder to convict guilty people. Evidence law is the law of managing these tensions — every specific rule represents a considered judgment about how to balance competing objectives in a particular situation.

IMPORTANCE OF EVIDENCE LAW

Protecting the Rights of Parties

Every person who comes before a Ugandan court has rights that evidence law protects. An accused person has the right not to be convicted except on properly admitted evidence that proves guilt beyond reasonable doubt. A civil litigant has the right to present relevant evidence and challenge evidence brought against them.

Ensuring Fairness Between Parties

Evidence law provides structure by setting consistent rules that apply to everyone equally. Without consistent evidence rules, a powerful party could overwhelm a weaker one with irrelevant material or exclude valid evidence on technical grounds the other side does not understand. Evidence law applies the same standards to both parties regardless of their resources or legal sophistication.

Supporting Sound Judicial Decision-Making

Judges and magistrates make decisions that profoundly affect people's lives. Evidence law gives judicial officers a structured framework for reaching these decisions — rather than relying on personal impressions or instinct, judges apply established rules to determine what evidence to admit, how to weigh it, and what conclusions can properly be drawn.

This structure also makes judicial decisions more predictable and capable of being reviewed on appeal. An appellate court reviewing a decision can examine whether the trial court correctly applied the rules of evidence.

Building Public Confidence in the Courts

A justice system only works if people trust it. Evidence law contributes directly to public confidence by ensuring that court decisions are based on a transparent, consistent process. When a Ugandan citizen sees that a conviction was secured through properly tested evidence — credible witnesses, authenticated documents, evidence that survived cross-examination — they can trust that the outcome reflects a fair process.

Why This Matters for Your Career

As a future advocate, you will rely on evidence law in nearly everything you do — gathering evidence for your client, presenting it properly, objecting to improper evidence from the other side, and challenging weak evidence through cross-examination. Many cases are not lost because the law was unclear but because evidence was poorly presented, improperly admitted, or successfully excluded. Mastery of evidence law gives you a significant practical advantage.

LESSON SUMMARY — KEY POINTS

- ✓ Evidence is defined in Section 2 of the Evidence Act Cap. 8 to include oral statements and documentary evidence including electronic records
- ✓ Evidence Law is the body of rules governing how facts are proved or disproved in legal proceedings
- ✓ Evidence Law is adjectival (procedural) law — it does not create rights, it governs how rights are enforced in court
- ✓ The primary source of evidence law in Uganda is the Evidence Act Cap. 8 (2024 Revised Edition)
- ✓ Five core objectives: truth, fairness, reliability, protection against wrongful conviction, and efficiency

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- ✓ These objectives sometimes conflict — evidence law rules represent a balance between them
- ✓ Article 28 of the Constitution of Uganda 1995 guarantees the right to a fair hearing, underpinning all fairness rules

SELF-TEST QUESTIONS

Attempt these before checking the platform practice quiz.

1. Define evidence as provided in Section 2 of the Evidence Act Cap. 8.
2. Is evidence law substantive law or adjectival law? Explain the difference.
3. Name three purposes that evidence law serves in the Ugandan justice system.
4. State one objective of evidence law and explain how a specific rule reflects it.
5. Why does Article 28 of the Constitution of Uganda 1995 matter for evidence law?